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Routledge Handbook of Surveillance Studies

Edited by Kirstie Ball,
Kevin Haggerty and David Lyon

Routledge Handbook of Surveillance Studies

Surveillance is a central organizing practice. Gathering personal data and processing them in searchable databases drives administrative efficiency but also raises questions about security, governance, civil liberties and privacy. Surveillance is both globalized in cooperative schemes, such as sharing biometric data, and localized in the daily minutiae of social life. This innovative *Handbook* explores the empirical, theoretical and ethical issues around surveillance and its use in daily life.

With a collection of over forty essays from the leading names in surveillance studies, the *Handbook* takes a truly multi-disciplinary approach to the critical questions of:

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- policing, intelligence and war;
- production and consumption;
- new media;
- security;
- identification;
- regulation and resistance.

The *Routledge Handbook of Surveillance Studies* is an international, accessible, definitive and comprehensive overview of the rapidly growing multi-disciplinary field of surveillance studies. The *Handbook's* direct, authoritative style will appeal to a wide range of scholars and students in the social sciences, arts and humanities.

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Preface

“Your Papers please”: personal and professional encounters with surveillance

Gary T. Marx

“You ought to have some papers to show who you are,”

The police officer advised me.

“I do not need any paper. I know who I am,” I said.

“Maybe so. Other people are also interested in knowing who you are.”

B. Traven, *The Death Ship*

The editors of this volume invited me to write about the growth of surveillance and the importance of scholarly efforts to understand it through the prism of my half a century’s involvement with the topic. Being respectful of authority, if not always power, I ambivalently accepted—unaccustomed as I am to the self-promotion and self-exegesis that often hides under the mask of academic formality and dispassion. Yet there is always a person behind the questions, methods and interpretations offered.

I will cover some sources of my initial interest in and later work on the topic; the kinds of questions surveillance developments raised for me in the latter part of the twentieth century and some efforts to conceptually rein in and organize the field’s empirical richness. I conclude with a discussion of the characteristics of surveillance studies as an emerging field.

Early interest

The French poet Paul Valéry (1965) has written, “in truth there is no theory which is not a fragment of an autobiography.” But can we trust the autobiographer? A little skepticism is always in order—Proust after all stressed that his recalls involved a theory not a record of the past. Kierkegaard observed that while life must be lived forward we seek to understand it by looking backwards. Our retrospective efforts involve linear stories in which discrete events are tied together in neat sense-making packages—downplaying the role of chance, memory failures, disconnection and other possible interpretations. The dots of life are there, but is the *ex post facto* pattern? To what extent does the coherence and explanation lie (but hopefully not lie too badly) in the imposed interpretation, not in the facts such as they are believed to be? The facts of course are unknowable absent a method and conceptual framework for knowing. Yet as Dmitri Shalin (2010) observes, personal characteristics and experiences can hardly be ignored in their effect on the work produced, even as we may be only vaguely aware of them.

My interest in surveillance was affected by growing up in Hollywood during the cold war when every little boy wanted to be the suspicious sheriff of the western movie with the white hat, or the square jawed

G-man with the fedora watching from the shadows of a comic book. Surveillance is likely to be of particular interest to those whose upbringing involved a stern disciplinarian who stressed the importance of liking what you see when you look in the mirror the morning after.

There are other more distant influences, or at least connections, that sparked imagination—being in a Boy Scout troop sponsored by the Los Angeles Police Department; having a relative who worked closely with the director of the CIA in the early 1970s; and a distant English relative who was George Orwell's first publisher.

With respect to young adult experiences—it was a dark and stormy day in the early 1960s at the Russian–Polish border when I first heard the words, “your papers” (there was no *please* in the gruff command). I was held for half a day's interrogation in a windowless room—without explanation or cause by persons of whom it could not be charitably said English was their second (or any) language.

My interest in surveillance was furthered on that trip (part of a year spent traveling around the world) by finding an electronic bug in my Moscow hotel, the clumsy efforts of a spy in-training assigned to our Intourist tour group. The surveillance theme was also accentuated by the difficulty in finding accurate street maps.

While all persons are experienced as subjects of surveillance, this seems more poignant when students or practitioners of the topic are themselves the targets. Consider the involuntary participant observation experiences of surveillance scholars John Gilliom (2001) and James Rule (1973). In an epilogue to his study of the surveillance of welfare recipients Gilliom details a disquieting search (complete with a black helicopter) of his rural home and land for marijuana cultivation based on an imprecisely drawn warrant (marijuana was being grown in a nearby federal forest). Rule was wrongly singled out and detained in a New York airport after a search by a drug-sniffing dog. His flight from Europe had originated in Pakistan. The previous passenger in Rule's seat had apparently left drug residue available for olfactory discovery.

With respect to my own experiences, it was easy to contrast the USSR with the presumably free society of the United States. I took a late 1950s, high school civics perspective to the Soviet encounters. I thought of surveillance in cold war and political terms as an unwelcome activity by a repressive state.

However, as a graduate student and professor in Berkeley and Cambridge in the next decade I came to appreciate surveillance as a fundamental social process characteristic of all societies—both functional and risky. The practice cut across institutions; individuals in interaction; the interaction of organizations with each other; and the public and private sectors. Surveillance was neither good nor bad, but context and comportment made it so. It was, as David Lyon (1994) has observed, Janus-headed and more.

In the classroom my studies were posing questions and presenting perspectives that involved surveillance, although the term was rarely used. In studying the creation and presentation of social reality, it was clear that things are often not as they appear, that rule breaking and rule enforcement could be intricately interwoven; that deception and covert information collection were common; and that information used by large organizations was becoming an ever more important social resource, paralleling—sometimes surpassing—and often intertwined with class, status and power. The capillaries of computerization and other new surveillance and communication tools that would rapidly expand in the next decades were beginning to be visible. At the time however, few saw information changes as being as potentially impactful as the invention of the steam engine, the railroad, the telegraph, the auto or the airplane.

My first graduate student paper written for Professor Erving Goffman was on passing among blacks. I became interested in issues of identity and in the formal records used for constructing it which ironically might also offer space for undermining official categories of identification.

Professor Erving Goffman offered an incipient sociology of personal information emphasizing the rules and contingencies around the discovery and protection of such information. Professor S. M. Lipset offered a model for understanding the social requisites and correlates of democracy and the enduring presence of inequality tied to social stratification. Professors Neil Smelser and Charles Glock illustrated how the flow of empirical events could be better understood and compared when broken into analytic dimensions.

Beyond the classroom, my perspective broadened as a result of personal experiences. I was active in CORE (Congress of Racial Equality), an organization dedicated at that time to integration through non-violence. After a major fundraising effort, an event occurred that severely damaged the group—our treasurer disappeared with the money. It turned out she was a police agent, as were several other disruptive members. I was shocked and angered that a peaceful democratic organization dedicated to ending racial discrimination could be a target of such police actions.

Within the classroom it was widely believed that some students secretly reported on their professors and fellow students. There were also police officers out of uniform in the classes I taught at Berkeley. I recall some interesting discussions with them about role conflicts, democracy and social order and how their presence in the classroom might be affecting what other students said.

In the beginning my interest was not in surveillance, or privacy or technology (especially not the latter—given sociology's party line aversion to any whiff of technological determinism), but in broader questions involving the nature of social order and in the factors associated with a democratic society. Modern society came increasingly to rely on inter-dependent, formal agencies beyond the more informal mechanisms characteristic of pre-industrial and pre-urban homogenous societies. The police as the most visible and symbolic applied agents of the state play a key institutional role in social control with their resources to support or undermine democratic ideals.

Democratic orders were indeed fragile and abusive surveillance was hardly restricted to authoritarian and totalitarian states. Yates's question ("What if the church and the state are the mob that howls at the door?") was more than rhetorical. This received greater public awareness following Watergate and the release of reports by the Church Committee (US Congress 1976) and the Rockefeller Commission (1975) (see also Donner 1980, and more recently Cunningham 2003; Earl 2011; Starr, Fernandez and Scholl forthcoming).

Initial research

I spent my first decade of research studying morally suspect and often illegal state surveillance against non-violent and generally non-criminal protest groups (Marx 1974, 1979). As the 1960s and early 1970s protest movements receded, surveillance for other uses expanded. Innovative forms were directed at white collar offences such as corruption, fencing, fraud, vice and police abuse. Because such violations are often consensual or may involve profound power inequalities they are more difficult to discover and prosecute. A congressman caught taking a bribe on a hidden video offered a strong new form of evidence.

A more equitable, science and technology-based enforcement ethos emerged for the FBI and other agencies following the death of J. Edgar Hoover and new federal funding for local police efforts (Marx 1988). This involved blending traditional undercover means with the latest in bugging, video and tracking tools; computers to identify subjects and to document their activities and networks; and emerging technical forms of forensics such as DNA and other patterns of identification and evidence. Surveillance was clearly changing in response to new social conditions and the availability of new technologies.

While hardly a flag waver for the covert arts, I increasingly came to see them as necessary in certain settings. Using surveillance against a suspected corrupt politician, fraudulent contractor, or rapist was very different from using it against nuns who were peace activists or blacks demanding the right to vote or sit at a lunch counter. Democracy could be threatened by extremist political groups. National security has always involved intelligence gathering. Surveillance by government was clearly necessary when legitimated and limited by policy, law and ethics. It could be as irresponsible not to use it, as to use it wrongly—even as the obvious risk of government abuses remained. Dastardly government deeds done in the dark hardly require sophisticated technology. However, the appearance of ever more powerful techniques offered new temptations for users and challenges for regulators.

As the year 1984 approached there was much public discussion about whether we were well on the way to George Orwell's dystopia. In a paper written for a Council of Europe conference in Strasbourg, I asked

how close we were to the society Orwell had described. I examined various social indicators to assess this (Marx 1986).

Contrary to Orwell, on most conventional measures such as of social participation, social mobility, the presence of non-state voluntary organizations, literacy, access to and use of diverse communication tools, knowledge of foreign languages and attitudes toward civil liberties and minorities, society had moved in an opposite direction from the society he imagined and from the year 1948 when the book was finished.

Orwell was a better prognosticator in his treatment of language and culture (e.g. newspeak, public relations, self-inhibitions created by fear of censorship and uncertainty about being observed). Furthermore, the image of the boot on the human face and the reappearance of state violence the book described did not in general apply, something Huxley noted in a 1948 letter to his former student:

Dear Mr. Orwell: Within the next generation I believe that the world's rulers will discover that infant conditioning and narco-hypnosis are more efficient as instruments of government, than clubs and prisons, and that the lust for power can be just as completely satisfied by suggesting people into loving their servitude as by flogging and kicking them into obedience. In other words, I feel that the nightmare of *Nineteen Eighty-Four* is destined to modulate into the nightmare of a world having more resemblance to that which I imagined in *Brave New World*.

(in Smith 1969)

Orwell's prognostication failures would be cause for celebration were it not for the fact that new and potentially repressive (if non-violent in conventional meaning) social forms and technologies were rapidly proliferating. Softer, low-visibility, engineered, connected and embedded domestic forms were clearly in ascendance. This swept across society, far beyond criminal justice or the military where many of the tactics originated and were first used.

A great deal was going on in the mid-1980s with the arrival of ever more powerful and seemingly omniscient, omnipresent knowledge machines. Consider video cameras; drug testing; computer documentation, discoveries, predictions and networks; location and communication monitoring; DNA analysis; and the many other new forms the current volume so richly documents.

Violent and non-violent forms of social control were uncoupled, with the latter increasing in importance. Over recent decades subtle, seemingly less coercive, forms of control have emerged within societies that have not become less democratic and in which the state makes less use of domestic violence.

Threats to privacy and liberty are not limited to the use of force, or to state power, and indeed they may appear in the service of benign ends. It is important to examine control by other means, and by users other than the state—whether organizations or individuals.

Partly as a result of Orwell, the image of an all-powerful repressive state comes easily to Americans, whereas the image of powerful and repressive private groups does not. *Nineteen Eighty-Four* focused attention only on the actions of the nefarious state (which had taken over the private sector). Yet today the private sector has the same technologies as government and in many ways is subject to fewer restrictions—whether in the treatment of workers or consumers.

It was necessary to go beyond the association of surveillance only with spies, police, political abuses and the state. To do that required a comprehensive set of content-neutral concepts to rein in the rich variation and social and moral complexity, paradoxes and contradictions of the topic. Explanation and evaluation required a common language for the identification and measurement of surveillance's fundamental properties and contexts.

In analyzing this I drew from Jim Rule's work. I met Rule shortly after I began teaching at Harvard while he was working on his PhD thesis. That prescient 1969 volume published in 1973 as *Private Lives and Public Surveillance* was the first scholarly book to empirically examine the social implications of the computer databases that large organizations had started to use.

Such databases could be conceptually linked with undercover practices and other emerging tools as part of the new surveillance. With their invisibility and the absence of subject consent, computers as electronic informants are similar in some ways to police informers and infiltrators, if more passive (Marx and Reichman 1984). Yet they also went beyond the latter in their potential not only to control, but to better serve citizens—for example with respect to health and welfare services. Computer matching could identify citizens not receiving benefits they are entitled to, as well as those receiving them erroneously or fraudulently. The new information flows could weaken, blur or strengthen traditional borders of many kinds as well as create new borders of inclusion and exclusion (Marx 2005).

The forms that appeared in the later twentieth century were distinct but they also shared certain key attributes and, because they are a variant of a broader social phenomenon, they share elements with non-technological forms. The social analyst can help us see this by offering constructs that separate what appears to be connected and by connecting what appears to be separate.

In the early 1980s I began empirical studies of computer matching and profiling and location and work monitoring and wrote public policy op-ed articles on topics such as drug testing, DNA analysis, credit reports, Caller-Id, manners and new communication means, and video surveillance. While substantively distinct, these forms also shared certain characteristics.

Looking across institutions brought me away from the formal organization called police to the function called policing and back to the broader questions about modes and means of social ordering (or in current parlance, governance) that my graduate education began with.

I had an abundance of facts that called out for more systematic organization in order to locate similarities and differences. A framework that went beyond newspaper descriptions and the shoot from the lip rhetoric of those strongly favoring or opposing the new forms without detailed analysis was needed.

My goal, pursued over the next decades, became the creation of a conceptual map for the collection, analysis and application of personal data. The question was not as many people initially ask, “Is surveillance good or bad?” but rather “what concepts are needed to capture the fundamental surveillance structures and processes across diverse tools and settings in order to make better comparative statements (whether across tools, institutions or countries)?” We can then ask, “what are the facts?” “what are the values?” “where is society headed?” and “how can we differentiate appropriate from inappropriate uses?” In the appendix to an early paper on privacy and technology (<http://web.mit.edu/gtmarx/www/privantt.html>) I listed almost 100 related questions the topic raises. Some examples of the conceptual approach are in Marx 2002, 2006 and forthcoming.

The overarching concept of the *new surveillance* (briefly discussed below) was a first step. Viewing the separate technologies with overlapping characteristics as an ideal type offered a way to think about broad changes in society. Identifying the major dimensions of surveillance could provide a means to contrast the different tools and to actually measure where, and the extent to which, changes were (or might be) occurring in social organization and behavior and to see more clearly the implications for liberty, privacy and life chances.

Concepts

In the beginning there is the *concept*. Among areas that need to be charted are the characteristics of the *social structures* that organize the behavior; the characteristics of the *means* used; of the *kind and form* of the data collected (e.g. public, personal, private, sensitive, intimate, or as text, audio or visual); of the *goals* (e.g. management, protection, documentation, strategic planning, ritual, entertainment); of the *conditions* of collection, data security, access and use—factors significantly defined by normative or rule expectations, whether involving ethics, laws, policies, manners and of course the array of *consequences* that may result. The relative power of agents and subjects is of course a key factor in conditioning the kinds of rules and the extent to which they are followed. Finally concepts are needed that deal with *culture* as it gives meaning to

the experience of being watched or a watcher. The narratives or discourses that explain surveillance vary by context and place. For example in some countries the technologies may be presented as a sign of modernization, in others as simply another tool of the benevolent welfare state or in times of crisis as a weapon against internal and external enemies.

At the most general level surveillance of humans (which is often, but need not, be synonymous with human surveillance) can be defined as regard or attendance to a person or to factors presumed to be associated with a person. This can involve *non-strategic surveillance*—the routine, auto-pilot, semi-conscious, often even instinctual awareness in which our sense receptors are at the ready, constantly receiving inputs from whatever is in perceptual range. Smelling smoke or hearing a noise that might or might not be a car's backfire are examples.

This contrasts with the *strategic surveillance* which involves a conscious strategy—often in an adversarial and inquisitorial context to gather information. Within the strategic form we can distinguish traditional from the new surveillance. The latter is at the core of contemporary concerns. *Traditional surveillance* is limited. It relies on the unaided senses and was characteristic of pre-industrial societies—information tended to stay local, compartmentalized, unshared and was often unrecorded, or if kept, difficult to retrieve and analyze in depth.

In contrast, the *new surveillance* involves scrutiny of individuals, groups and contexts through the use of technical means to extract or create information. This means the ability to go beyond what is offered to the unaided senses and minds or what is voluntarily reported. The new surveillance is central to the emergence of a *surveillance society* with its extensive and intensive (and often remote, embedded) data collection, analysis and networks.

At the ideal-typical extreme we would see *the maximum security society* (which we are far from, but perhaps moving closer to). Such a society is composed of a series of sub-societies: *a hard engineered society; a soft and seductive engineered society; a dossier society; an actuarial society; a transparent society; a self-monitored society; a suspicious society; a networked society of ambient and ubiquitous sensors in constant communication; a safe and secure society with attenuated tolerance for risk; a "who are you society?" of protean identities both asserted by, and imposed upon, individuals; and a "where are you, where have you been and who else is there?" society of documented mobility, activity and location.*

Regardless of whether we are dealing with traditional or the new surveillance, some common classificatory notions can be applied. In the case of surveillance social structures, for example, we can identify the *surveillance agent* (whether as watcher/observer/seeker/inspector/auditor/tester), while the person about whom information is sought or reported is the *surveillance subject*. The agent role can be further separated into the *sponsor, data collector* and *initial or secondary user*.

Many contemporary concerns over surveillance involve the practices of large organizations relative to employees, clients or the public. *Organizational surveillance* is distinct from the *non-organizational surveillance* carried about by individuals. At the organizational level formal surveillance involves a constituency. Organizations have varying degrees of internal and external surveillance. Erving Goffman (1961) has identified many kinds of employee or inmate monitoring, such as within "total institutions."

Within an organization *internal constituency surveillance* (scrutiny of insiders) contrasts with *external constituency surveillance* (attending to outsiders such as customers, patients, travelers). *External non-constituency surveillance* involves organizations monitoring their broader environment in watching other organizations and social trends. The rapidly growing, understudied field of business intelligence fits here.

Non-organizational surveillance, in which an individual watches another individual or an organization (whether for protection, strategic or prurient reasons) apart from a formal organizational role, is another major form. It may involve *role relationship surveillance* as with family members (parents and children, the suspicious spouse) or friends looking out for and at each other (e.g. monitoring location through a cell phone). Or it can involve *non-role relationship surveillance*—as with the free-floating activities of the voyeur whose watching is unconnected to a legitimate role.

Agent-initiated surveillance, which is particularly characteristic of compliance checks such as an inspection of a truck or a boat, can be differentiated from *subject-initiated surveillance*. The agent and subject of surveillance merge with *self-surveillance*—where individuals watch themselves (a deterrence and/or prevention goal found with many uses). Self-monitoring can be intertwined with an external surveillance agent in the form of parallel or *co-surveillance*. This is the case for example with remote health monitoring in which both the monitored person and a health agency simultaneously receive signals about the subject.

In the above case co-surveillance is *non-reciprocal* with personal data going from the watched to the watcher (e.g. employers, merchants, doctors, teachers, parents) and tends to reflect power and resource differences. In contrast, *reciprocal surveillance* is by definition bi-directional as with social networking sites. But reciprocal need not mean equal. Surveillance that is reciprocal may be *asymmetrical* or *symmetrical*. In a democratic society citizens and government engage in reciprocal but distinct and shifting forms and degrees of mutual surveillance.

These questions draw attention to who is entitled to and/or able to play the agent role and who is the subject? New tools may bring increased democratization (or a better term—equalization) as with readily available cell phone cameras and internet access or the tools may be restricted as with access to satellites, private data bases and sophisticated data mining.

A measure of democracy is the extent of restrictions on and mandatory requirements for information flows across actors and sectors. For example, what is the ratio over time of what governments and large organizations are expected to (or may) reveal about themselves (e.g. freedom of information and truth in advertising laws and policies, conflict of interest statements) and what citizens are expected to reveal about themselves to governments and large organizations? A number of dimensions of this are analyzed in Marx (2011). Contrast the extremes of a totalitarian government which must reveal nothing to citizens—who must reveal all to government, with the unrealistic case of a fully open government which must reveal all to citizens who in turn reveal only what they choose to government.

An emphasis on structure implies that the topic is static and fixed at one point in time, yet surveillance also needs to be viewed as a fluid, ongoing process involving interaction and strategic calculations over time. Among major processes are the *softening of surveillance*; efforts to create the *myth of surveillance* (which can involve generating fears supportive of turning to a technical solution and claiming that the solution is more effective than it is); and the *monitarization of personal data* so it can be sold to marketers, governments and individuals and the *commodification* of surveillance in which it (or protection from it) become products to be purchased; and various techniques of neutralization. The latter are strategic moves by which subjects of surveillance seek to subvert the collection of personal information such as *direct refusal*, *discovery*, *avoidance*, *switching*, *distorting*, *counter-surveillance*, *cooperation*, *blocking* and *masking*. Equivalent counter-neutralization moves by agents are also present.

Another way to think about process is to consider the links between the distinct activities covered by the umbrella term, surveillance. The most common meaning refers to some act of data collection, but in fact this must be located within a broader system of connected activities.

Once surveillance is viewed as an appropriate means, discrete units of action may be identified that implicitly answer different questions and involve distinct goals. These can be thought of as *scripts* of behavior. Seven kinds of activity conceived of as strips that follow each other in logical order can be noted. The strips are temporally, conceptually, empirically and often spatially distinct. They include: *tool selection*; *subject selection*; *collection*; *processing/analysis*; *interpretation*; *uses/action*; and *data fate* (e.g. secondary users, destroyed, sealed, restricted or made public). Considered together these strips constitute the *surveillance occasion* and offer a way to bound a given application.

The “career” of a particular surveillance tool may also be tracked as it emerges and then may diffuse—whether in a jagged or in a more linear direction. In the case of the latter this may be through *surveillance creep* or *gallop*, often displacing other means along the way and bringing new goals and users. There may also be *surveillance constriction* as a new, unregulated tactic becomes subject to limitations and even

prohibitions. Changes in *surveillance slack*, a measure of the gap between the potential of a technology and its degree of application may also be charted.

An emerging field

The field of surveillance studies came to increased public and academic attention after 9/11 (Monaghan 2006). But the topic in its modern form has been of interest to scholars at least since the 1950s. This is related to greater awareness of the human rights abuses of colonialism, fascism, and communism, anti-democratic behavior within democratic societies, the literary work of Huxley, Orwell and Kafka, and the appearance of computers and other new technologies with their profound implications for social behavior, organization and societies.

Foucault (although writing about earlier centuries) is certainly the dominant grandfather of contemporary studies and further in the background are Taylor, Weber, Nietzsche, Marx, Bentham, Rousseau and Hobbes; and of course even further back the watchful and potentially wrathful (although also sometimes loving and protective) eye of the Biblical God of the Old Testament.

What were those interested in the topic reading at mid-century and in the following several decades? In the 1960s The Who sang “talkin’ about my generation.” While I cannot speak for others, neither are these observations only reflective of my experience.

I will note the kinds of literature the cohort who entered social science graduate schools from the 1960s into the 1980s were likely reading. From the 1950s to the early 1980s the ardor of the surveillance studies or privacy bibliophile could be easily and responsibly sated. That satiation was provided by journalists Barth (1951) and Packer (1964), legal scholars Samuel Dash, R. Schwartz, and K. Knowlton (1959) and Arthur Miller (1971), political scientist Alan Westin (1967), and sociologists Edward Shils (1956), Rose Coser (1961), Barry Schwartz (1968), Stanton Wheeler (1969) and Jim Rule (1973). In the early 1980s attention to the topic increased with work such as that by journalist David Burnham (1983), philosophers Sissela Bok (1978, 1982) and Fred Schoenman (1984), and sociologist Ken Laudon (1986). A small social and environmental psychology literature also existed (Altman 1975; Margulis 1977; Ingram 1978). In addition, some classic law articles reviewed cases and asserted central principles or values (Fried 1968; Bloustein 1979; Gavison 1980).

The modest amount of scholarly and media attention to the topic in that early period has been replaced by a continuing flood of attention—see summaries of recent literature in Marx and Muschert 2007, Lyon 2007 and the articles in recent edited collections such as Zureik and Salter 2005; Haggerty and Ericson 2006; Lyon 2006; Monahan 2006; Norris and Wilson 2006; Staples 2007; Hier and Greenberg 2007, 2009; Leman-Langlois 2008; Kerr *et al.* 2009; Wall 2009; Hempel *et al.* 2010; and Zureik *et al.* 2010. The growth involves many fields: philosophy, sociology, criminology, social psychology, political science, geography, law, architecture/planning, history, economics, communications, cultural studies, computer, public administration, public health, business, and science, technology and society studies.

How does the emerging field of surveillance studies compare to other fields preceded by an adjective? Social studies of surveillance start with an empirical topic—that is different from beginning with a research question, theory or method. The focus on a kind of behavior necessarily calls for breadth and crosses disciplines, institutions, methods and places. This catholicity is furthered because there is no formal organization for surveillance studies, unlike for the established disciplines and many other “studies” fields. This gives the field egalitarian openness, energy, and contemporaneity and the ability to incorporate rapid changes and new ideas. Fields with more established cultures and formal gatekeepers vigilantly patrolling their intellectual borders are more prone to ossification. This openness is a source of the field’s strength and energy. Yet it can also be seen as a source of weakness—the field is diffuse, scholars lack agreement on many important issues and knowledge is not very cumulative.

The field’s openness harks back to nineteenth-century generalists such as Karl Marx, Max Weber and Georg Simmel who looked broadly across areas to understand the big changes associated with

modernization. They considered social change from historical, economic, social, legal and cultural perspectives. Today, specialization is hardly in danger of being replaced, nor should it be. Yet surveillance studies in focusing on substantive topics in their richness and in bringing perspectives and findings from various fields together has an important role to play.

The area is so far best characterized as multi-disciplinary rather than inter-disciplinary. In an inter-disciplinary field the distinct ideas and levels of analysis from various disciplines are integrated, rather than being applied in a parallel fashion. Illustrative of the former would be finding that workers of a particular personality type respond positively (in terms of attitude and productivity) to intensive work monitoring, while those with a different personality respond in an opposite fashion, showing how concepts from geography can inform the ethical, legal and popular culture labeling of places (whether physical or cyber) as public or private, or demonstrating how the different historical experience of Europe relative to the United States led to the former's greater concern and different policies over private sector surveillance as against that of government, while in the United States that pattern was reversed.

Surveillance studies as a growing epistemic community is unlike most other "studies" fields. It is not based on a geographical region, ethnicity, gender or life style (e.g. as with urban or women's studies). Nor is it based on a single disciplinary, theoretical or methodological perspective (e.g. sociology, postmodernism or survey research). Rather it is based on a family of behaviors all dealing in some way with information about the individual (whether uniquely identified or not) or about groups. The social significance of the activity is in crossing or failing to cross the borders of the person—factors which can be central to life chances, self-concept and democracy.

The field overlaps several related areas. It shares with technology and society studies an interest in the social impacts of (and upon) tools, but is restricted to one class of tool defined by its information function. It shares an interest in surveillance technology with many fields such as engineering and computer and forensic science, but it is concerned with the social and cultural, not the technical elements. Some of the forms studied do not even involve technical hardware (e.g. social technologies such as reading lips, facial expressions and body language).

By far the most numerous and methodologically most sophisticated studies preceded by the adjective surveillance are in the area of public health. Foucault (1977) analyzes power and the mapping of the plague in the seventeenth century as a precursor to modern surveillance. The epidemiological studies of disease and epidemics however reflect only one of many strands in surveillance studies.

The field also overlaps some of the topical interests of management information, library science and criminal justice studies, but it is decidedly not a policy, applied or managerial field. While it tends to share value concerns with civil liberties, privacy and human rights studies, most researchers begin with the values and norms of scholarship in order to advance knowledge, rather than beginning with policy, reform or activism.

Social studies of surveillance share with globalization studies an interest in the causes and consequences of increased world interdependence and cooperation; in the standardization of techniques and policies and new trans-border organizations; and in cross-border flows of data and persons. Relative to most study fields it is (and should be) more international with respect to its practitioners and its subject matter.

The journal and web resource *Surveillance & Society* has editors and advisors across Western societies. The Canadian New Transparency and the European Living in Surveillance Societies projects also have participants from many countries—although English is the dominant language which tilts toward an overrepresentation of Anglophone scholars and few comparative studies. Any generalizations from the English-speaking world to the world must be empirically grounded—not to mention the need to be aware of differences between (and within) English-speaking countries. More work has been done in western than in eastern Europe and little is available on other countries.

An important question is the extent to which we are moving toward a fairly uniform world surveillance society driven by a common ethos, problems, and technology developed in Western societies—as against a

commonality based on convergence and amalgamation, or will we see a world of uncommonality where local differences in narratives and uses remain strong even as common technologies are adopted?

The field departs from globalization studies in the many non-global aspects it is concerned with. Much scrutinizing is at the local level and is strongly influenced by the particular cultural context—whether involving parents and children, friends, workers or shoppers and societies with democratic or authoritarian traditions. Across countries the local language used to justify or challenge a tactic may reflect different value assumptions, priorities and models of society, e.g. the welfare state, the threatened state, the religious state, the libertarian state.

Social studies of surveillance are university-based and bound by norms of scholarship involving logic, method, awareness of prior research, evidence and civility. These norms prescribe fairness and objectivity in the conduct of research; listening carefully to those we disagree with; and continually reflecting on the positions we hold. Value neutrality is necessary for reasons of principle and of strategic legitimacy.

The topic however does have great moral bite and scholars are drawn to it because they are concerned over its implications for the kind of society we are, are becoming or might become, as technology and changing life conditions alter the crossing of personal and group information borders.

Perhaps to a greater degree than for most fields, the social issues driving researchers are manifest (e.g. autonomy, fairness, privacy and transparency). These value concerns are not easily characterized in conventional terms as liberal or conservative and there are conflicting legitimate goals (e.g. between the rights of the individual and the needs of the community, the desire to be left alone and to be noticed, rights to privacy and to information).

A concern with underdogs and the negative aspects of inequality is present, but so too is awareness of the interconnected parts of the social order which brings cautiousness about social change introduced too quickly and without adequate discussion. Genuine informed consent and level playing fields are issues shared across most conflicting ideologies. An overarching value in much research is the Kantian idea of respect for the dignity of the person and the related factor of respect for the social and procedural conditions that foster fair treatment, democracy and a civil society.

After so little scholarly interest in the field for so long, the insights and sustained and focused intellectual energy reflected in this volume are most welcome! This book fills a need. While the last decade has seen many *studies of surveillance*, there has been little work seeking to define and present the broad field of *surveillance studies* and to create an empirical knowledge base. The game has many players. This comprehensive handbook by leading scholars, in offering an introduction, mapping and directions for future research provides a field for them to play on. Scholars as well as computers need platforms.

The book serves as a reminder that, while they (whether the state, commercial interests or new, expanding public-private hybrid forms) are watching us, we are watching them. Surveillance studies have an important role to play in publicizing what is happening or might happen, ways of thinking about this, and what is at stake. Making surveillance more visible and understandable hardly guarantees a just and accountable society, but it is surely a necessary condition for one.

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Introducing surveillance studies

David Lyon, Kevin D. Haggerty and Kirstie Ball

Surveillance studies today

Surveillance studies is new. That is to say, until very recently something called surveillance studies did not exist. People studied surveillance, but in isolated, piecemeal and unsystematic ways. Over the past 20 years or so, surveillance has become an increasingly important topic within both academic and public debate. Interest in surveillance studies has mushroomed, generating considerable excitement about the potential for new ways to understand human behavior. The appearance of this handbook indicates that the field has matured sufficiently for many scholars to cooperate on a joint publishing venture to map the field in at least a preliminary fashion. It does not for a moment mean that “schools” of thought have emerged in any broadly agreed upon, well defined way, or that the field has stabilized into secure and preset lines of argument. It does mean that there are some tremendously important issues to analyze and to debate that a lively community of scholars are pursuing.

Today, surveillance studies is a complex world made up of scholars who have disciplinary homes across the social sciences, arts and humanities. Through their engagement with others working on surveillance a trans-disciplinary community has emerged within which individuals work at a range of levels and in a variety of domains which we hope are reflected in the following pages. The contribution of surveillance studies is to foreground empirically, theoretically and ethically the nature, impact and effects of a fundamental social-ordering process. This process comprises the collection, usually (but not always) followed by analysis and application of information within a given domain of social, environmental, economic or political governance. Typically the process occurs through a series of interlinked, distributed and distanced institutions, systems, bureaucracies and social connections. Consequently its effects are difficult to isolate and observe, as they are embedded within many normal aspects of daily life. Reactions and resistance to surveillance, as well as its mis- and re-appropriations, occur at grass roots, artistic and activist levels.

Surveillance is an ancient social process. It has always been a component of institutional routines and human sociality (Locke 2010), but over perhaps the past 40 years it has emerged as the dominant organizing practice of late modernity. This is the starting point for any critical understanding of surveillance. Developments in material, corporate and governmental infrastructures alongside technologies, data-handling and data manipulation have overcome historical limitations to vision (and the other senses). This has produced downstream social changes in the dynamics of power, identity, institutional practice and interpersonal relations on a scale comparable to the changes brought by industrialization, globalization or the historical rise of urbanization.

Readers of this volume will be exposed to a momentous expansion and intensification of surveillance in almost all institutional spheres of contemporary existence. Wherever one looks, one sees surveillance embedded within distinctive projects. In many workplaces employee performance is now scrutinized at a level of detail that would delight the early advocates of scientific management (Ball 2010). Warfare is undergoing a visibility “arms race,” with combatants incorporating new ways to visualise, track and target the enemy, while struggling to remaining unseen themselves. Police officers now spend a good amount of their time simply collecting and processing information (Ericson and Haggerty 1997) and seeking out ways to incorporate the data collected by other institutions into police practice. The same is true in the world of international security, where the “war on terror” has embraced dataveillance, biometrics and surveillance cameras (Whitaker 1999). Commercial organizations have helped to monetize information and in the process developed a voracious appetite for fine-grained consumer data (Turow 2006). The nation state, long a significant actor in collecting data on citizens (Agar 2003; Higgs 2004), is radicalizing the scope of governmental surveillance through assorted “e-government” initiatives. Students from kindergarten through university are marked, measured and monitored and increasingly subjected to surveillance justified as a way to enhance school safety (Monahan and Torres 2009).

Such scrutiny is not only more pervasive, it is also more penetrating and consequential, playing a prominent role in decision-making about the lives of aggregate populations and individual citizens.

A number of questions arise. What is driving this transformation? How are we to understand the factors prompting change of this magnitude? There are at least two levels of explanation that we can contemplate. The first concerns the “micro/meso” level where numerous local contingencies pertaining to inter-institutional competition, local politics, specific fears/desires or even serendipity, play out in the development of any surveillance practice. Scholars studying surveillance typically investigate the convergence of many of these factors and how they help make specific surveillance practices appealing to different constituencies.

Such a focus helps foreground the local politics of surveillance, but leaves unaddressed the larger question of why surveillance appears to be proliferating so broadly. How are we to understand the growth of surveillance as a general social phenomena, one that is apparent globally—although with distinctive local inflections in different countries and contexts (Murakami Wood 2009)?

A primary candidate in trying to understand this growth of surveillance has been the new information technologies which can relatively inexpensively and easily monitor more people in more detail than was previously possible. Computers with the power to handle huge datasets, or “big data” (Manyika *et al.* 2011), detailed satellite imaging and biometrics are just some of the technologies that now allow us to watch others in greater depth, breadth and immediacy. This is not to say that the technology is determinative in any way but also does not shy away from the fact that such artifacts are a vital precondition for many of the changes that we are witnessing.

Technology, however, is not a sufficient reason to account for this change. Instead, it is better to think of a process of causal over-determination, where a confluence of factors make surveillance often appear as *the* most appealing way to advance any number of institutional agendas. Some of these factors include changing governmental rationalities, the rise of managerialism, new risks (or perceived dangers), political expediency and public opinion.

Although all of this monitoring is highly variable in terms of the projects being advanced and the practices and technologies involved, some general trends can be identified. The first entails a process of blurring boundaries, something that operates at several different levels. In the criminal justice system, for example, the boundary between the police and the public is blurred as officials seek to position citizens as the “eyes and ears” of the authorities. This is expected to operate in routine day-to-day encounters with citizens reporting on suspicious situations and informing on other citizens (Natapoff 2009). It also extends to forms of wikiveillance, where the public is encouraged to monitor internet feeds from distant surveillance cameras and inform the authorities if they see crime occurring or immigrants covertly crossing into another country (Koskela 2011).

Institutional boundaries also become more indistinct as state policing and security agencies draw upon the massive infrastructure of data collected by other governmental bureaucracies and incorporate them into security agendas. The legality of such efforts is sometimes in question, as is apparent from revelations that Chinese authorities have been hacking into private companies in the West and using open source information to conduct espionage. However, state access to other institutions is increasingly a formal legal expectation, with private organizations being positioned as a conduit or relay in an extended network of state surveillance. Examples include assorted provisions that require ISPs, banks, cell phone companies, and even libraries, to provide the authorities with routine access to data about their clientele.

A second general trend is that surveillance has become simultaneously more visible and invisible. On the one hand, as we go about our daily lives it is hard to miss the proliferating cameras, demands for official documents and public discussions about internet dataveillance. At the same time, there is a curious invisibility surrounding these practices. The actual operation of surveillance, the precise nature and depth of its penetration, along with the protocols for how one is singled out for suspicion or reward are opaque to all but a select few insiders. Also contributing to invisibility are the hidden video and audio recorders and embedded sensors which silently gather and remotely transmit data.

A third trend involves the democratization of surveillance, such that even groups that historically were largely unscrutinized are now monitored by major institutions and sometimes by other citizens (Mathiesen 1997; Goldsmith 2010). As surveillance becomes a generalized response to any number of social issues, it is hard for anyone to remain free from scrutiny. This is not to say that the democratization of surveillance has itself translated into anything approaching a leveling of social hierarchies. In fact, new asymmetries have emerged, such that the surveillance of more powerful groups is often used to further their privileged access to resources, while for more marginalized groups surveillance can reinforce and exacerbate existing inequalities.

Much of this is contingent on forms of social sorting (Lyon 2003), where data about populations are subject to institutional processing which is itself related to vastly different life chances. At the level of the individual, such social sorting is not inherently bad, as it can ideally be used to better distribute resources to a society's most vulnerable or needy. This sensibility to both the positive and negative implications of surveillance reinforces the general normative orientation of surveillance studies that surveillance is capable of being used for both desirable and detestable things. Much of the critical literature focuses on the inappropriate and often hidden uses of surveillance, with scholars often consciously positioning themselves opposite the more optimistic and often self-serving and even naïve pronouncements about the exclusively beneficial consequences of surveillance technology.

Given that many surveillance studies scholars are alarmed by some of the more disquieting instances of surveillance, a major question concerns how citizens should respond to these developments, either individually or collectively. In surveillance studies this issue of praxis often revolves around debates about the continued relevance of official privacy regimes or data protection provisions. Although there is a wide spectrum of opinion on this topic, one can crudely break these down into those who have some faith in the existing privacy structures versus those who are more suspicious or critical.

In legal terms, privacy—along with that of “data protection” in Europe especially—often seems the obvious category to wield in wars against rampant data-gathering (Reagan 1995; Bennett 1992). Advocates for a privacy approach tend to acknowledge that these regimes are limited by virtue of underfunding, scant powers of investigation and enforcement, broad exemptions and outdated assumptions about the nature of privacy. At the same time, they stress that privacy discourses and structures remain the most promising avenue for restricting surveillance and point to instances where such measures have helped thwart egregious privacy violations (Bennett 2011, 2008).

At the other end of the continuum are those who tend to accentuate the limitations of privacy as both a concept and a regime. For them, proof of the failure of privacy structures is glaringly apparent in how a surveillance society has sprung up around us, notwithstanding a large and vibrant privacy bureaucracy. In

essence, the unrelenting growth of intensive surveillance measures is presented as conclusive evidence that the privacy infrastructure has proven itself to be incapable of thwarting the expansion of surveillance. Scholars in this tradition tend to focus their research more on the mundane daily practices that individuals use to try and secure a private realm, such as closing blinds, shredding documents, purchasing anti-surveillance devices, or learning how to “hide in the light” (Gilliom 2001; Nippert-Eng 2010; Whitson and Haggerty 2008; Marx 2003).

Any resistance to surveillance ultimately depends upon an informed, motivated and engaged citizenry. This points to the fact that perhaps one of the greatest surprises in the field of surveillance studies has been the comparatively muted public response to developments in surveillance that seem to be self-evident threats to personal liberties. One wants to be careful here not to discount the vital efforts by anti-surveillance activists and concerned citizens, and some of the important anti-surveillance victories that they have won. At the same time, it is clear that by and large the public has enthusiastically or resignedly accepted such technologies, accepting claims that they are viable ways to secure profit, increase security, or simply as fun devices to play with (Ellerbrok, forthcoming). This muted public response, combined with a new willingness by individuals to hand over information on assorted social media applications, has challenged many assumptions that scholars have about citizen engagement and the politics of surveillance.

These are just a smattering of the important preoccupations of scholars studying surveillance. They are themselves the culmination of an emergent process that has helped to give rise to a new and vibrant multi disciplinary field.

The rise of surveillance studies

The timing of surveillance studies’ appearance is no accident, in at least two ways. First, personal information became economically, political and culturally significant in unprecedented ways during the later twentieth century. The biggest single driver of this was the shift to computerized record-keeping. What was once stored in static, fixed locations—index cards and filing cabinets—and shared with others only under strictly limited circumstances was expanded, became mobile, searchable and shareable, not only within but across organizations and even countries. This meant that surveillance capacities grew massively in several ways at once. Even as they did so, other processes, such as burgeoning global corporations, increased government outsourcing and a vast increase in the commercial use of personal data for marketing, offered new incentives for personal data-processing. Now, people not only take for granted that they have to remember their passwords or show ID but also, as social media multiply, cheerfully and voluntarily expose their data to others.

Nor is the appearance of surveillance studies an accident in social and information sciences either. In the last part of the twentieth century many social scientists queried just what model of “modernity” had dominated that century’s social thought, and questions were raised about whether surveillance had been given sufficient prominence (e.g. Giddens 1987). The work of Michel Foucault (1977) catalyzed considerable controversy over the role of the “panopticon” prison plan within modernity; did this diagram for disciplinary practices mark a watershed in modernity and usher in new regimes of surveillant power? Simultaneously, in the same quarter-century, social scientists found themselves grappling with the rapid rise of new media, often seen first as information and communication technologies with “social impacts,” and later as indispensable and inextricable dimensions of everyday social life.

These three major currents of thought produced a healthy debate over the realities of surveillance in the last part of the twentieth and the first part of the twenty-first centuries, marked in the latter period by the surge of surveillance developments consequent on 9/11. The attacks on America and subsequent attacks in Europe were rather specific but their surveillance repercussions have become global. At any rate, the most stimulating surveillance scholarship to emerge was not that which focused on single events, or declared that we now live in a digital panopticon or an electronic cage, but rather that which put surveillance in an

historical, comparative and critical frame. The fact that “control” and “risk” had become dominant themes of politics was not a mere spin-off of cybernetics but had to do with long-term trends in political economy (e.g. Garland 2001). The fact that new technologies for personal information-handling were being adopted in many countries simultaneously did not mean that the surveillance outcomes were identical. And the fact that “surveillance” was often taken to be a loaded term—with sometimes sinister and socially negative connotations—did not mean that the quest for more “neutral” concepts would eventually succeed. Surveillance studies is not free of ethical, legal and policy dimensions, and indeed here such issues are often more readily apparent and pressing than in other fields of study.

These things are clear from some of the earliest books to appear within a recognizably—in retrospect—surveillance studies stable. James Rule’s work on *Private Lives and Public Surveillance* (1973) examined the role of early computer-based administrative systems such as social security and credit cards, showing against an historical background how these were consequential new developments. The very notion of privacy, as understood in the Western world, was being challenged by the growth of automated record-keeping and the digitizing of personal data. Gary T. Marx’s (1988) study of undercover policing in the United States also put such practices in an historical context and again demonstrated how new technologies were helping to change the nature of policing. The section of his book that examined “new surveillance” such as video cameras, polygraphs and computerized records became a classic. If Rule’s work was in sociology and Marx’s work depended on criminology, Oscar Gandy’s (1993) studies in consumer surveillance—*The Panoptic Sort*—appeared within communication studies. He showed decisively how personal information is economically valuable and how the consumer playing field is far from level. Data on more and less valued customers help reproduce social inequalities.

Almost inevitably, as this research appeared in the Europe–North America axis, the question of privacy was never far from the surface. The value of personal information was becoming increasingly apparent across a range of sites. In order to try to stem the flow of such data, most people readily appealed to the concept of privacy. At the same time, other concepts within surveillance studies raised important questions about how far privacy could be conceived as the best antidote to surveillance.

The new surveillance was associated with electronic technologies and, as David Lyon (1994) pointed out in *The Electronic Eye*, several studies emphasized how this facilitated a crucial categorizing dimension in addition to the already-existing use of statistical tools in administrative surveillance. “Social sorting” (Lyon 2003) became a useful shorthand for this, which could be seen for instance in policing (Ericson and Haggerty 1997) or in public space camera surveillance (Norris and Armstrong 1999). As legal scholar Lawrence Lessig (1999) noted, the use of software code and algorithms, along with dependence on searchable and remotely accessible databases, produced new sets of problems. People were to be treated differently depending on how they were categorized.

Questions about which concepts are more helpful in understanding and, where necessary, curbing surveillance continue to be discussed and the book in your hands indicates some instructive and insightful lines of inquiry. Here are a few examples, to give the flavor of what we mean. Both “surveillance” and “privacy” are old concepts, now reapplied, filled with fresh content and used to grasp key aspects of the proliferation of personal data. Similar things might be said of “bureaucracy,” “militarism” or “colonialism,” each of which also hark back to long-term and consequential historical processes and link to today’s practices of personal data-handling. And of course, the institutions associated with those three examples live on in various guises in the present. Today’s surveillance processes simply cannot be understood without reference to their historical precedents and backgrounds.

Newer ones, like “social sorting,” “surveillant assemblage,” “visibility” or “exposure” are sensitizing concepts, used to alert us to new dimensions of social practice, but are still in need of further specification, empirical analysis and comparative study in different contexts. Social sorting highlights the categorizing enabled by new statistical and software practices and which tends to reproduce and amplify social divisions. The surveillant assemblage (Haggerty and Ericson 2000) draws attention to how discrete and varied

surveillance systems tend to converge into flows of personal data, drawing members of any and all populations into their purview. Visibility (Brighenti 2007) prompts examination of whose data are seen by whom and with what effects, because managing visibilities is at the core of control, while exposure (Ball 2009) points more to the subjective experience of surveillance, how people actually experience being “watched” and what differences that makes to the process.

These concepts connect back, in turn, with strands of theory from various disciplinary sources. They are necessary both for explanation and also for critique and they require of anyone engaging with surveillance studies a willingness to hear what people from other “home disciplines” may have said about a particular problem. The editors of this book have each become aware of extremely productive strands of theory in disciplinary areas in which they have no training or background but that are now essential to our grasp of surveillance. While we still bring our expertise—from history, sociology, criminology and organization studies—to bear on surveillance, we must remain open to insights from disciplines such as geography, law, international relations, computer science and psychoanalysis, ethics and marketing. Surveillance studies is a multi-disciplinary field.

The concepts used in surveillance studies also indicate the need for exploration across different fields of study. Two examples are particularly important, to do with software and security. This is not to downplay the significance of other aspects of surveillance that have little or nothing to do with technology or public safety but rather to illustrate how this field of study intersects with others at some crucial points. It is hard to grasp what is going on in today’s surveillance practices and processes without some informed reference to issues such as software and security.

Software, a category that until the 1960s referred to cotton or woolen fabrics, is now understood as programs and instructions that operate computers, but its intimate involvement in everyday life is less frequently recognized. Yet the codes controlling computers are crucial for data-handling and thus for most surveillance (Galloway 2004). In the world of mobile devices using social media, for instance, one is obliged to think in terms of the “techno-social.” Social media are defined by the “user-generation” of content, but users may only generate that content with the available software codes. And just as users keep track of each others’ activities on iPhones and Blackberries, those machines themselves are programmed to keep track of their users and the data are constantly fed back into circuits of control. This world of software code, through instructions and algorithms, not only mediates but also helps to constitute social interactions and associations (Kitchin and Dodge 2011).

Security represents another field of study with which surveillance studies has many commonalities and overlaps. They are definitely not the same as each other. Much security is defined generally, and not necessarily helpfully, in terms of “national security” and depends on surveillance (see Bigo, this volume). But at the same time, much surveillance is not directly related to security as this is commonly understood (think of social media, for instance).

Even the attacks of 9/11, which undoubtedly prompted widespread attempts to bolster security through unprecedented levels of surveillance (Lyon 2003), have to be understood in context. Those events did not produce a radical rupture in existing practices, but instead served as an important punctuation point for wider processes in the dynamics of security and surveillance that were already in play. The terrorist attacks coalesced a sense amongst security experts that surveillance might be a panacea against terrorism, and this, in turn, led to a significant expansion in the “surveillance industrial complex” as corporations rushed to sell surveillance solutions to any number of perceived security needs (ACLU 2004). At the same time, the enormity of the attacks also tended to dampen the voices of those individuals and groups who historically have been most opposed to new state surveillance practices.

These are just some of the valuable insights that surveillance studies scholars have produced about some of the most consequential phenomena of our generation. Surveillance studies will continue to intersect critically with crucial concepts from other disciplines. Indeed it is these intersections that provide the analytical leverage which follows when studying surveillance. Studies of surveillance are scattered across a wide

multi-disciplinary field, one that can take the uninitiated years to begin to navigate. We hope that this handbook will offer some navigational tools to assist others in getting their bearings as well as providing many new contributions to the field.

The handbook

This handbook emerged from “The New Transparency” major collaborative research initiative. The initiative, funded by the Social Sciences and Humanities Research Council of Canada, brings together approximately 50 scholars and graduate students from Canada, North and Central America, Japan and Europe who work on surveillance issues from within their respective disciplines. The project aims to synthesize the wide array of empirical and theoretical work which is now being undertaken by surveillance scholars. It is the first, but not the only, funded research network on surveillance. In Europe, the “Living in Surveillance Societies” network has brought together academics from 21 European countries, and groups have now formed in Latin America, Australia and Asia. Many scholars from these different backgrounds have contributed to this volume.

Producing a handbook of this nature involved difficult acts of categorization and sorting not dissimilar to those with which our scholarly work is concerned. Which topics to include and exclude, how the book would be internally organized, and, crucially, who would contribute, were debated for several months. Whilst we labored to ensure that the range of genders, ethnicities and nationalities were represented, it was also impossible to include everyone we wanted to.

We were similarly conscious of the intellectual and ethical minefields that were at the heart of producing something called “Routledge Handbook of Surveillance Studies.” “The” implies a definitive work; nevertheless, we had to be careful in our choice of authors and in the scope of their coverage in a subject area which has a concentration of scholars, and male scholars at that, in the global north; and “Handbook” implies that the volume would need to be useful for its readers. Critically, “of Surveillance Studies” positions this volume as the first wide-ranging multi-authored piece which attempts to constitute, delimit and represent “surveillance studies” in print. This is no small undertaking, and we do not pretend to have fully represented the range of current work within this complex field. We have tried to address some of the key concerns and to provide new scholars and those wishing to expand their horizons with a sense of what we think surveillance studies entails. Empirical and theoretical territories, ethical agendas and contexts of application are addressed, and several common themes have emerged. The concepts of identification, identity and privacy, the contextual importance of news and online media to the spread of surveillance, and theoretical foci which address the body and new combinations of the virtual and material are a few examples of these common themes.

A handbook of this nature is retrospective in focus as each chapter summarizes the current state of the art regarding its respective topic. Authors were directed to consider some of the key concepts, ongoing debates and emerging issues relating to the topic under discussion. Nevertheless the chapters also generate considerable insight into the likely agendas for surveillance scholars as the field continues to grow. The future research agendas that are to be found in this volume reflect the ongoing and problematic nature of surveillance as scholars have come to understand it. Five areas of attention for the future have been identified. The first three address empirical and ethical concerns, the fourth addresses theoretical concerns and the fifth political concerns.

First, it remains critical that surveillance scholars address the relationship of surveillance processes to different forms of governance and government which mobilize it as a mode of ordering. This is an exceptionally important question because of the capacity of government and its associated public administrations to mandate and “normalize” surveillance practices as part of the governance process. This is to say that public administration can render the surveillance practices involved in governing acceptable and uncontroversial, resulting in them becoming taken for granted by the general population. Nevertheless the

configuration of surveillance practices, (particularly as these involve rule enforcement, inclusion and exclusion) convey strong messages as to which aspects of society are valued and which are not. Evidence is needed as to the transformative effects of surveillance on key social variables such as trust and the implications of requiring individuals to positively identify themselves in order to receive goods and services and to exercise democratic rights. Further evidence needs to be generated about whether and how the dynamics of surveillance practices may becoming more closely related to degrees of social stratification producing classes of surveillance “haves” and “have nots.” Do privileged individuals gain access to more accurate, efficient, representative and thus more ethical surveillance which protects them and their position; whereas the less advantaged are disproportionately subject to a blunt instrument which continually disadvantages them?

A second area of concern is the internationalization of the security industry, accompanied by the massive growth in the marketing data industry and the corporate infrastructures and technologies which enable data to be shared and mined. As Ben Hayes (this volume) states:

Research is needed to understand the process of surveillance innovation in its broadest terms. This includes analyzing the flows of public and private money into security and surveillance research, critically evaluating expenditure and effectiveness, and assessing its impact on both public policy debates and universities ...

He argues that research should be positioned: ... within debates about corporate responsibility and accountability; by considering not just the regulation of surveillance technology but the potential regulation of the Homeland Security industry; and by drawing inspiration from the global transparency and privacy movements, from anti-lobbying initiatives and arms trade regulations, from ethical debates around science, and from the emerging United Nations business and human rights framework.

(p. 174, this volume)

Although the globalization of surveillance and its infrastructures is aligned to corporate interests and international political economy, it remains a local issue because individual contexts become more connected, particularly through social media and participatory surveillance. This is, however, not to deny the importance of international connections which are made possible by these media (subject to the extent to which governments censor social media applications in some countries). Implications arise for government too as new forms of census-taking and national statistical measurement make use of these data sources. A key question is how any privacy or other ethical harms that arise from these practices are combated or regulated as regulators continue to struggle with problems of regulatory lag as the corporate world moves faster than they do.

A third aspect to consider is the powerful role played by print, broadcast and online media in the spread of surveillance as well as the possibilities it offers for reappropriation, resistance and artistic intervention. The news media promote many messages about surveillance which seem to reinforce beliefs about crime and social divisions by playing on fear and insecurity. Television and print media, for example, have given surveillance cameras enormous symbolic power but research has shown that such devices have had little effect on crime levels. Social media also play an important seductive role: at the same time as people are sharing details of their life online they can delight in the alternative selves they create and play with the watcher/watcher relation through visual culture, media and gaming. Research on children and young people's engagement with surveillance either through school or through their use of the internet has illuminated this tension. Further research may question the gendered and sexualized identities and emotions which operate across different populations as individuals interact with, manipulate and appropriate surveillance practices. Questions also remain over the extent to which collective action can be energized around media surveillance which is embedded to the point of its invisibility and ubiquity. What are the possibilities to resist, and to not surrender information, on a micro everyday level?

A fourth area concerns the future theoretical agenda of surveillance studies. Surveillance scholars have drawn upon a diverse theoretical body—in spite of the “Foucault obsessed” stereotypes—and have used

many of the established pillars of social scientific theorizing to augment their understanding of the phenomenon. For the future, it is important to theorize surveillance as something which is spatially and temporally distributed and which has productive and constructive effects on the objects it seeks to govern. A further need is to theorize the differential roles of the state and private sectors as surveillance societies emerge. Moreover, as surveillance practice becomes embedded into everyday worlds, surveillance theory needs to take account of how lived materialities and the virtual worlds *as produced by surveillance* conjoin, co-construct and influence one another. Surveillance scholars should also reflect on the ontological, epistemological and political consequences of classifying something as being *of surveillance*. While surveillance theory de-normalizes and problematizes attempts by the powerful to amass information about populations, surveillance scholars need to be mindful about what is lost as part of that surveillance-theoretical endeavor. For example, questions of liberty, security and difference can sometimes become “flattened” in surveillance studies analyses.

A fifth and final area is the enduring issue of how to (re)politicize surveillance practices in order that they may be questioned and understood—and where appropriate—resisted, challenged and made more accountable to surveilled subjects, activists, advocates and regulators. A persistent difficulty is finding suitable entry points at which to tackle surveillance because of its ubiquity and relative normalization. Surveillance, although a normal everyday process in many contexts, is one which is inherently political: its very application constitutes polity. For example, there is an inherent political economy around surveillance which is used in response to commercial priorities and to reinforce a business’s market position. Such surveillance bolsters processes of capitalist value creation and the extraction of material labor from workers and immaterial labor from consumers (Lazzarato 2004). Surveillance associated with the exercise of state power actively constitutes citizenship, political legitimacy, susceptibility to state force and violence and deception; it can redraw borders and delineate territories. Surveillance as social sorting is inherently discriminatory, yet the algorithmic criteria which divide virtual and material populations are opaque. As Colin Bennett points out in this volume, the challenge is to identify a sense of collective grievance with surveillance without engaging in a broader struggle wherein surveillance as the central issue becomes lost.

Campaigns from every point in the political spectrum have engaged with surveillance issues. The “NO2ID” single issue campaign contributed to government plans for ID cards being shelved in the UK. Statewatch, a European NGO which tracks state surveillance and its human rights infringements throughout Europe held its twentieth anniversary conference in 2011 and is as incisive as ever. The American Civil Liberties Union (ACLU) and Electronic Frontier Foundation (EFF) continue to play a leading role and provide online resources in advocacy around privacy, surveillance and human rights. “A Report on the Surveillance Society” by the Surveillance Studies Network prompted two parliamentary enquiries into the surveillance society in the UK, and the report attracted global media interest. Freedom of information requests by criminological researchers have revealed the extent to which the police are using automated license plate readers in the UK. Privacy commissioners around the world continue to work within the limitations of privacy law dictum with limited regulatory powers over broader questions of surveillance.

Although many civil society groups and privacy regulators have engaged effectively with the consequences of surveillance practice, an ongoing difficulty for challengers concerns intervention in surveillance processes before any adverse consequences occur. In surveillance assemblages, where surveillance capacity is distributed within the invisible world of algorithms, over interoperable systems, between departments of large bureaucracies and over international boundaries it is extremely difficult to pinpoint the locus of responsibility for surveillance processes. An ongoing political challenge and continuing frustration for many activists concerns developing the ability to tackle accountability for surveillance processes and their outcomes. It is at this point where theory, practice and politics intersect. With a growing body of empirical evidence outlining the dynamics of surveillance in action and the roles played by different actors, as theory begins to recast surveillance in more distributed and networked terms, points of entry and engagement will emerge where questions of politics and ethics may be meaningfully posed.

These are some of the pressing questions that need to be addressed about the dynamics of surveillance. The wide-ranging nature of these questions, grounded within the content of the chapters in this volume, indicates the extent to which surveillance has become an integral part of contemporary existence. We believe that this volume represents a solid foundation for future excursions into the complex world of surveillance. We hope that it is a useful guide and resource for those interested in learning about and building upon the excellent work done by the first generation of surveillance studies scholars.

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Part I

Understanding surveillance

Introduction

Understanding surveillance

The study of surveillance addresses some of the most significant questions of our day, often dealing with pressing issues of power, culture, identity, inequality, ethics and resistance. The first part of this handbook presents work concerned with some of those foundational themes and how they pertain to the study and operation of surveillance.

The first section focuses on theoretical debates within surveillance studies, with a particular emphasis on the influential argument by philosopher Michel Foucault about the historical rise of a distinctively modern form of “panoptic” surveillance. Following Foucault, this is itself tied to the emergence of disciplinary power that shapes behavior through a subtle form of “soul training.” Many authors have subsequently identified panoptic dynamics in assorted surveillance measures, that throw some light on what is happening within the surveillance “gaze.” But, as other authors show, serious questions remain about the relevance of several aspects of Foucault’s model as it pertains to contemporary surveillance.

Greg Elmer’s chapter addresses this question about the place of panoptic models in the study of surveillance, and the place of Foucault’s work in this field more generally. Elmer concentrates on the three key themes of panopticism, discipline and control to argue for the continuing relevance of Foucault’s work to the study of surveillance. He does so by returning to the works of Jeremy Bentham—the original creator of the panopticon model—in order to make a distinction between understandings of surveillance that focus on the reality of monitoring versus the more Foucauldian emphasis on the likelihood of being watched. Elmer argues that Foucault’s truly unique contribution was to emphasize discipline, which entails a kind of automatic docility and self-government.

Other authors have drawn upon different components of Foucault’s wider body of work to advance our theorizing of surveillance. Here, Ayse Ceyhan’s contribution focuses upon Foucault’s notions of “bio-power” and “governmentality,” and how they relate to contemporary forms of algorithmic surveillance which involve a power over life itself. This often relies on population statistics and probability calculations. She demonstrates the relevance of Foucauldian concepts to contemporary issues, showing in particular how such surveillance is now central to neoliberal regimes, used to manage populations and reassure an often anxious public.

The French theoretical tradition contains other rich resources that can usefully advance our theorizing of surveillance. William Bogard outlines some of these works, detailing how insights from philosophers such as Jean Baudrillard and Gilles Deleuze can apply to the study of surveillance. Bogard foregrounds the model of the “surveillant assemblage” which is comprised of heterogeneous component parts which are